MARKETING BULL

FOR PERSONAL INJURY FIRM OWNERS

# THE PI INTAKE SCORECARD



19 questions that show where your firm loses cases between the first ring and the signed retainer. Score it with whoever runs intake. It takes about 20 minutes.


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04 B. Speed to lead
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BEFORE YOU SCORE

# THE CASE USUALLY GOES TO WHOEVER ANSWERS FIRST.

Most firms judge intake by what the policy says. Prospects judge it by what happens when they call. This scorecard measures the second thing.

**72%**

of people contacted only one attorney before hiring one.[1] If you are not the firm that answers, you may never get the call back.

**1 in 4**

law firms replied to a web lead within five minutes, and 26% never replied at all.[2]

**17.5%**

of calls to law firms came in outside weekday 9 to 5.[3] Evenings and weekends are part of the job.

## HOW TO SCORE

Every question is worth 0, 1 or 2 points. Use the descriptions in each row.

| 2 | 1 | 0 |
|---|---|---|
| True today, and you can show it. | Partly true, or true only some of the time. | Not true, or you don't know. |

Score what actually happens, not what the policy says. If your honest answer is "I think so," score it 0. Not knowing is the finding.

## SCORE IT TWICE

Each row has two boxes: one for the owner or managing partner, one for whoever runs intake. Score separately, then compare. Where your answers differ by a point or more, that gap is worth a conversation on its own.

## HAVE THESE TO HAND

- Last month's call report (answered, missed, abandoned, hold time)
- Your CRM or lead log
- Last quarter's marketing spend by source
- Your intake script, if there is one

## WHAT YOU'LL WALK AWAY WITH

### A SCORE AND A BAND

Out of 38, with a plain read on what it means for your firm.

### WHERE CASES SLIP

The section and the questions where you lose the most.

### TWO POINTS OF VIEW

How the owner's answers compare with intake's.

### A 30-DAY PLAN

One section a week, and a worksheet to test your own firm.

1. FindLaw, 2016 Consumer Legal Needs Survey.
2. Hennessey Digital, 2025 Lead Form Response Time Study (1,333 U.S. law firms, Q1 2025). hennessey.com/2025-lead-form-response-time-study
3. Market My Market, "What Does Your Firm Lose by Being '9 to 5'?" (30,000 calls to its law-firm clients over six months). marketmymarket.com

SECTION A · 5 QUESTIONS · 10 POINTS

# COVERAGE: WHO ANSWERS, AND WHEN

A

A prospect who reaches voicemail rarely waits for you. They call the next firm on the list. Coverage is about whether a trained person picks up every new-case call, at any hour, in the caller's language, without being bounced around first.

| # | QUESTION | 2 POINTS | 1 POINT | 0 POINTS | OWNER | INTAKE |
|---|---|---|---|---|---|---|
| 1 | **During business hours, a live person answers a new-case call within three rings.** | Always, and call reports confirm it | Usually; no report to check | Often voicemail, or you don't know | ☐ | ☐ |
| 2 | **A new-case call at 9pm on a Saturday is answered live by someone trained to take a PI intake (staff, an on-call attorney, or an answering service using your script).** RED FLAG | Live, trained, using your script | A service takes a message only | Voicemail, or you don't know | ☐ | ☐ |
| 3 | **A new-case caller gets their name and number taken before any hold or transfer, and is transferred no more than once.** | Always | Sometimes | Hold or multiple transfers are common | ☐ | ☐ |
| 4 | **A Spanish-speaking caller can complete a full intake in Spanish.** | Yes, live, including after hours | Business hours only, or by callback | No | ☐ | ☐ |
| 5 | **New clients have a dedicated number or phone route, separate from existing-client and general calls.** | Yes, routed straight to intake | Separate number, same front desk | No | ☐ | ☐ |
| | | | | **SECTION A TOTAL (OUT OF 10)** | ☐ | ☐ |

Tip: if you don't know the answer to question 2, that is the call to make first. The worksheet on page 9 walks you through it.

EXAMPLE

## WHAT GOOD LOOKS LIKE

The phone is answered within three rings with the firm's name. The intake specialist asks whether the caller is somewhere safe and whether they're hurt, takes a name and number "in case we get cut off," then says **"Let me get some information about what happened."** No hold before a name, no transfer to someone who asks the same questions again, and the same answer at 9pm on a Saturday, in English or Spanish.

SECTION B · 4 QUESTIONS · 8 POINTS

# SPEED TO LEAD

B

Web forms, chats and missed calls are leads that already raised their hand. Every minute between that moment and a personal reply is a minute in which another firm can answer them first. Speed only counts if it is measured, so the last question asks whether you actually know your number.

| # | QUESTION | 2 POINTS | 1 POINT | 0 POINTS | OWNER | INTAKE |
|---|---|---|---|---|---|---|
| 6 | **Web-form and chat inquiries get a personal call or text from a person within five minutes during business hours.** | Yes, and it is measured | Same day | Next day or later, or unknown | ☐ | ☐ |
| 7 | **Missed and abandoned calls are called back within five minutes.** RED FLAG | Yes, and someone owns it | Within the hour, or by end of day | Only if they leave a voicemail | ☐ | ☐ |
| 8 | **A missed call triggers an automatic text-back telling the caller a person will call right away.** | Yes, with consent-appropriate wording | Set up but not monitored | No | ☐ | ☐ |
| 9 | **You know your firm's actual response time to new leads because it comes from a report, not an estimate.** | Yes, reviewed monthly | We could pull it | No | ☐ | ☐ |
| | | | | **SECTION B TOTAL (OUT OF 8)** | ☐ | ☐ |

Tip: for question 9, compare the time each lead was created with the time of the first contact attempt in your CRM. Most firms find the real number is slower than the one they assumed.

EXAMPLE

## WHAT GOOD LOOKS LIKE

A web form arrives mid-afternoon and **the intake coordinator's phone buzzes with a text alert**, not just an email. She calls within a few minutes. A call missed at 6:40pm triggers an automatic text within a minute saying a person will call right back, and someone does. At month end, a report shows the median time from lead to first contact, by channel.

SECTION C · 4 QUESTIONS · 8 POINTS

# QUALIFICATION

C

Answering fast only helps if the call ends with the right next step. A consistent script protects the caller and the case: it gets contact details before the line can drop, gathers what an attorney needs to evaluate the case, and leaves a qualified caller with a booked consult or a retainer, not a promise of a callback.

| # | QUESTION | 2 POINTS | 1 POINT | 0 POINTS | OWNER | INTAKE |
|---|---|---|---|---|---|---|
| 10 | **Intake follows a written script: safety and injury check, contact details first, then accident, injuries, treatment, insurance and prior representation.** | Written and followed | Written, loosely followed | No script | ☐ | ☐ |
| 11 | **Contact details and permission to text are captured in the first minute, in case the call drops.** | Always | Sometimes | Rarely | ☐ | ☐ |
| 12 | **A qualified caller leaves the call with a next step: a booked consult or an e-sign retainer sent the same day.** | Always | Sometimes | They wait for a callback from an attorney | ☐ | ☐ |
| 13 | **Cases you don't take are referred out and logged, not dropped.** | Referred and logged | Referred informally | Dropped | ☐ | ☐ |
| | | | | **SECTION C TOTAL (OUT OF 8)** | ☐ | ☐ |

Tip: listen to how your intake team opens a call. "Are you somewhere safe? Are you hurt?" followed by "Let me take your name and number in case we get cut off" covers questions 10 and 11 in the first minute.

EXAMPLE

## WHAT GOOD LOOKS LIKE

Every call follows the same order, and every call ends with something concrete. **A qualified caller leaves with a consult on the calendar or an e-sign retainer in their inbox** the same day. A caller you can't help is referred to a firm that can, and the referral is logged, so the lead is not simply lost.

SECTION D · 3 QUESTIONS · 6 POINTS

# FOLLOW-UP

D

Many signable cases are lost after the first call: the prospect who didn't pick up, the one waiting on a police report, the one who said "let me think about it." Follow-up is what turns those into retainers.

| # | QUESTION | 2 POINTS | 1 POINT | 0 POINTS | OWNER | INTAKE |
|---|---|---|---|---|---|---|
| 14 | **Every lead has a status in a CRM or lead log (New, Attempted Contact, Unable to Contact, Qualified, Rejected, Retained).** | Every lead | Most leads | Only signed clients are logged | ☐ | ☐ |
| 15 | **Leads you can't reach get a defined multi-day cadence of calls, texts and emails.** | Written cadence, tracked | A few attempts, no set cadence | One call and one voicemail | ☐ | ☐ |
| 16 | **Leads waiting on documents (police report, medical records) have assigned tasks with due dates.** | Yes | Sometimes | No | ☐ | ☐ |
| | | | | **SECTION D TOTAL (OUT OF 6)** | ☐ | ☐ |

SECTION E · 3 QUESTIONS · 6 POINTS

# ATTRIBUTION AND OVERSIGHT

E

If you can't trace a signed case back to the ad, keyword or referrer that produced it, you can't tell which marketing is working, and nobody notices when intake starts slipping.

| # | QUESTION | 2 POINTS | 1 POINT | 0 POINTS | OWNER | INTAKE |
|---|---|---|---|---|---|---|
| 17 | **Every lead is tagged with its source: campaign, keyword, tracking number or referrer.** RED FLAG | Every lead | Some channels | No | ☐ | ☐ |
| 18 | **You can state last quarter's cost per signed case, by source.** | Yes, by source | Blended total only | No | ☐ | ☐ |
| 19 | **Someone reviews call reports monthly, and intake is mystery-shopped at least quarterly and whenever a new intake hire starts.** | Both | One of the two | Neither | ☐ | ☐ |
| | | | | **SECTION E TOTAL (OUT OF 6)** | ☐ | ☐ |

YOUR SCORE

# ADD IT UP

| SECTION | MAX | OWNER | INTAKE | GAP |
|---|---|---|---|---|
| A. Coverage | 10 | | | |
| B. Speed to lead | 8 | | | |
| C. Qualification | 8 | | | |
| D. Follow-up | 6 | | | |
| E. Attribution and oversight | 6 | | | |
| **TOTAL** | **38** | | | |

Use the lower of the two totals to find your band. The section with the lowest score as a share of its maximum is where to start.

**30–38**
**TIGHT**

Your intake answers, moves fast and tracks where cases come from, so you are probably not losing leads at the phone in large numbers. **Next:** re-score every quarter and whenever intake staff change. Growth money is safer spent on getting found and getting in front of more prospects.

**18–29**
**LEAKING**

The basics exist, but cases are likely slipping in specific places: after hours, in the callback queue, or in follow-up that stops too early. **Next:** fix the lowest-scoring section first using page 8, and run the self mystery-shop on page 9 this week, including one call after hours.

**0–17**
**LOSING CASES YOU PAID FOR**

More leads won't fix this. Some of what you spend on marketing is likely going to calls nobody answers or follows up. **Next:** get an outside measurement before you spend more on leads (page 11), and start the 30-day plan on page 10.

## RED FLAGS, WHATEVER YOUR TOTAL

A 0 on **question 2** (the Saturday 9pm call), **question 7** (missed-call callback) or **question 17** (lead source) is worth fixing first, even if you scored in the Tight band. Each one means paid-for leads can disappear without anyone noticing.

| YOUR TOP 3 FIXES | WHAT WILL CHANGE | OWNER | BY WHEN |
|---|---|---|---|
| 1. Section ___ | | | |
| 2. Section ___ | | | |
| 3. Section ___ | | | |

WHAT TO FIX FIRST

# START WITH YOUR LOWEST SECTION

You don't need new software to fix most of these. Start where you scored lowest, and pick the changes your team can make this month.

## A COVERAGE

- Give new clients a dedicated number that rings straight to intake, not the front desk.
- Cover nights and weekends with a live, trained answer that follows your script: staff on call, an on-call attorney, or an answering service or voice agent that takes the intake and books the callback.
- Rule for everyone who answers: take the name and number before any hold or transfer.
- Arrange Spanish-language intake, including after hours.

## B SPEED TO LEAD

- Send web-form and chat alerts to a phone as a text, not only to an inbox.
- Name one person who owns the missed-call queue, with a five-minute callback target.
- Turn on a missed-call text-back that tells the caller a person is calling them back.
- Report response time from timestamps every month, not from memory.

## C QUALIFICATION

- Write the script down in order: safety and injury, contact details and permission to text, accident, injuries, treatment, insurance, prior representation.
- Let intake send an e-sign retainer or book the consult on the call, without waiting for an attorney.
- Keep a referral list for cases you don't take, and log every referral.

## D FOLLOW-UP

- Log every lead, not just signed clients, with one of six statuses: New, Attempted Contact, Unable to Contact, Qualified, Rejected, Retained.
- Write an "unable to reach" cadence of calls, texts and emails over several days, and template the messages.
- Create a task with a due date for every lead waiting on documents.

## E ATTRIBUTION AND OVERSIGHT

- Use tracking numbers per campaign and carry campaign tags on web forms, so every lead arrives with its source.
- Each quarter, divide spend by signed cases for each source.
- Review call reports monthly against simple benchmarks: no missed new-case calls, no hold over 30 seconds.
- Mystery-shop intake every quarter and whenever you hire someone new for intake.

## TEMPLATES WORTH WRITING ONCE

Set these up in your CRM or email tool so nobody writes them from scratch at 9pm.

- "Thank you for your inquiry": a short series that introduces the firm and reassures the lead
- "Unable to reach you": an email sequence and a text asking the lead to call
- After-hours web-form reply: when they'll hear from a person
- The e-sign retainer email
- The welcome email after the retainer is signed
- Missed-call text-back

SELF MYSTERY-SHOP

# CALL YOUR OWN FIRM

**01** Have someone outside the firm call your main number as a new PI prospect, once during business hours and once after hours. Log both calls below.

**02** If a callback was promised, time how long it took and note the channel (call, text or email).

**03** Submit your own website form and start a chat. Time the first personal response.

**04** Pull last month's call report. Count missed and abandoned calls, and check whether each one got a callback.

**05** Pick five leads from last month that didn't sign. Check their status, how many follow-up attempts they got, and whether you know their source.

| CALL LOG | BUSINESS HOURS | AFTER HOURS |
|---|---|---|
| Date and time dialed | | |
| Rings before answer | | |
| Who answered (person, service, voicemail) | | |
| Name and number taken first? | | |
| Hold time and number of transfers | | |
| Script followed? Case questions asked? | | |
| Next step offered (consult, retainer) | | |
| Callback promised? Time received, channel | | |

| ONLINE TEST | WEBSITE FORM | CHAT |
|---|---|---|
| Submitted at | | |
| First personal response at, and channel | | |

| LAST MONTH | COUNT | CALLED BACK WITHIN 5 MIN |
|---|---|---|
| Missed new-case calls | | |
| Abandoned calls (hung up before answer) | | |

**Take notes, don't record.** Florida is an all-party consent state for recording phone calls. Don't record a test call unless everyone on it consents, and check the rules in your own state.

YOUR 30-DAY PLAN

# ONE SECTION A WEEK

Work through one section a week, starting with your lowest. Tick each item off as it's done, then re-score at the end of week 4.

**WEEK 1**

## MEASURE

- [ ] Owner and intake lead score the scorecard separately
- [ ] Run both mystery-shop calls and the online test (page 9)
- [ ] Pull last month's call report and lead log
- [ ] Agree on the lowest-scoring section and any red flags

**WEEK 2**

## CLOSE THE GAPS AT THE PHONE

- [ ] Fix after-hours and weekend coverage (question 2)
- [ ] Name an owner for missed calls, with a five-minute target (question 7)
- [ ] Route web-form and chat alerts to a phone
- [ ] Set the "name and number first" rule for everyone who answers

**WEEK 3**

## SCRIPT AND FOLLOW-UP

- [ ] Write or update the intake script, in order
- [ ] Let intake book consults or send e-sign retainers on the call
- [ ] Give every lead a status in the CRM or lead log
- [ ] Write the "unable to reach" cadence and templates

**WEEK 4**

## TRACK AND RE-SCORE

- [ ] Make sure every lead arrives with its source (question 17)
- [ ] Work out last quarter's cost per signed case by source
- [ ] Put a monthly call-report review on the calendar
- [ ] Re-score and compare with week 1

| SCORE HISTORY | DATE | TOTAL (OUT OF 38) | LOWEST SECTION |
|---|---|---|---|
| First score | | | |
| After 30 days | | | |
| Next quarter | | | |
| After a new intake hire | | | |

## THE BENCHMARKS TO HOLD

- New-case calls answered live within three rings, day or night
- Missed calls, web forms and chats get a personal reply within five minutes
- Every lead logged with a status and a source
- A name and number taken before any hold or transfer
- No missed new-case calls left without a callback
- Call reports reviewed monthly; intake mystery-shopped quarterly

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THE INTAKE GAP AUDIT

# RATHER HAVE IT MEASURED FROM THE OUTSIDE?

It's hard to mystery-shop your own team. We do it for you, without your staff knowing when, and score every touchpoint against the same five areas as this scorecard.

- Two mystery-shop calls scored on a timestamped scorecard: one during business hours, one after hours
- A full audit against our intake checklist: speed to lead, coverage, follow-up, qualification and attribution
- A prioritized fix list: what to change first
- A timed web-form and chat response test
- An ROI report that puts a dollar figure on the leak, using your lead volume and average case value
- A CRM and intake workflow review, if you give us read-only access

**7–10 BUSINESS DAYS**
From kickoff to the report.

**FIXED FEE, IN WRITING**
Quoted before anything begins.

**CREDITED IN FULL**
Toward any engagement you start within 60 days.

> "I have personally referred this team to colleagues and clients because I knew I could trust the results. They don't just generate leads — they make sure you close them."
>
> TODD D. MUHLSTOCK, ESQ. · WESUETHEM.COM

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